

SENATE No. 1802

The Commonwealth of Massachusetts

PRESENTED BY:

Nick Collins

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act providing for a COVID-19 retirement credit to essential public health and safety employees.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Nick Collins</i>	<i>First Suffolk</i>	
<i>Adam J. Scanlon</i>	<i>14th Bristol</i>	<i>3/26/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>6/20/2025</i>
<i>Paul W. Mark</i>	<i>Berkshire, Hampden, Franklin and Hampshire</i>	<i>7/15/2025</i>
<i>Susannah M. Whipps</i>	<i>2nd Franklin</i>	<i>7/15/2025</i>
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>7/15/2025</i>
<i>Ryan C. Fattman</i>	<i>Worcester and Hampden</i>	<i>7/15/2025</i>

SENATE No. 1802

By Mr. Collins, a petition (accompanied by bill, Senate, No. 1802) of Nick Collins for legislation to provide for a COVID-19 retirement credit to essential first responders employees. Public Service.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1619 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act providing for a COVID-19 retirement credit to essential public health and safety employees.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. (a) As used in this section, the following words shall have the following
2 meanings unless the context clearly requires otherwise:

3 “COVID-19 essential employee retirement credit bonus” or “COVID-19 credit”,
4 equivalent to the duration of the Governor’s Covid-19 State of Emergency March 10, 2020 –
5 June 15, 2021, added to an employee’s age or years of service or a combination thereof that can
6 be used at retirement for the purpose of calculating a retirement benefit pursuant to Chapter 32.

7 “Essential employee”, All state, county and municipal public health and safety officials
8 including Police, Fire, and EMS, court officers, corrections officers and public health officials
9 who provided direct patient care or supervision

10 (b), The secretary of administration and finance shall identify all essential employees of
11 the commonwealth who, during the period covered by the governor's state of emergency
12 declared on March 10, 2020 until its rescission, were: (ii) required to work at their respective
13 worksite or any other worksite outside of their personal residence; and (iii) public facing.

14 (c) The secretary shall work with the appropriate heads of departments of the
15 commonwealth to identify and provide a list of essential employees and their home mailing
16 address to the state retirement board documenting the employees' eligibility for the COVID-19
17 essential employee retirement credit bonus. Upon identification of eligible essential employees,
18 such employees shall be credited with a COVID-19 credit as defined in Section 1 (a). The state
19 retirement board shall notify each eligible essential employee in writing of their receipt of the
20 credit.

21 SECTION 2 - A municipality may elect to adopt the COVID-19 essential employee
22 retirement credit in Section 1 .This section shall take effect in a municipality upon its acceptance
23 in the following manner: in a city, by vote of its city council in accordance with its city charter,
24 in a town, whether it maintains its own contributory retirement system or its employees are
25 members of a county or regional retirement system, by vote of the town meeting, in a district,
26 whether it maintains its own contributory retirement system or its employees are members of a
27 county or regional retirement system, by vote of the district meeting, and in the case of an
28 authority, the governing body. For the purposes of this section, the state employees' retirement
29 system shall be deemed to have accepted the provisions of this section.

30 SECTION3. Upon Local Acceptance of this Act the chief executive for a municipality
31 shall identify all essential employees eligible for the COVID -19 credit pursuant to Section 1a.

32 Upon identification of eligible essential employees, such employees shall be credited with a
33 COVID-19 credit as defined in Section 1 (a). The retirement board of which the municipality's
34 employees are members shall notify each eligible employee in writing of their receipt of the
35 credit.

36 SECTION 4. The chief executive officer for a quasi-public agency whose Chapter 32
37 retirement board has accepted the COVID-19 credit pursuant to Section 2 shall work with
38 agency's director of human resources to identify employees eligible for the COVID - credit
39 pursuant to Section 1. Upon identification of eligible employees, such employees shall be
40 credited with a COVID-19 credit as defined in Section 1 (a). The retirement board of which the
41 agency's employees are members shall notify each eligible employee in writing of their receipt
42 of the credit.